

M/s The Mahabir Jute Mills Ltd. v. Purvanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 12 September 2016 · Writ-C No. 29082 of 2013 · **Dismissed as infructuous; 4.20 additional-security challenge not decided.**

HEADNOTE

Writ against additional security under para 4.20 of the U.P. Electricity Supply Code, 2005, connected with similar matters and protected by an interim restraint on the demand, was later dismissed as infructuous on the petitioner's statement without deciding the Code challenge.

FACTUAL SUMMARY

M/s The Mahabir Jute Mills Ltd. challenged Purvanchal Vidyut Vitran Nigam Ltd.'s demand of additional security under para 4.20 of the U.P. Electricity Supply Code, 2005. On 24 May 2013 the Court connected the writ with W.P. No. 30582 of 2009 and similar 4.20 challenges, allowed a counter affidavit, and restrained additional-security demands pending further orders. After later adjournments, counsel stated on 12 September 2016 that the petition had become infructuous.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

The writ challenging additional security under para 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed as infructuous on the petitioner's statement, without deciding the validity of the demand. ¶ 1

PRINCIPLE TAGS

additional-security Writ against additional security under para 4.20 of the U.P. Electricity Supply Code, 2005, connected with similar matters and protected by an interim restraint on the demand, was later dismissed as infructuous on the petitioner's statement without deciding the Code challenge. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF ADDITIONAL SECURITY DEMANDED UNDER PARA 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Petition dismissed as infructuous; merits of the 4.20 challenge were not adjudicated. ¶ 1